

SENATE No. 1631

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to sudden cardiac arrest awareness.

PETITION OF:

NAME:

John C. Velis

DISTRICT/ADDRESS:

Hampden and Hampshire

SENATE No. 1631

By Mr. Velis, a petition (accompanied by bill, Senate, No. 1631) of John C. Velis for legislation relative to sudden cardiac arrest awareness. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1474 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to sudden cardiac arrest awareness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 222 the following section:-

3 Section 222A. (a) For the purposes of this section, the following words shall have the
4 following meanings, unless the context clearly indicates otherwise:

5 “Athletic activity”, all of the following:

6 (1) Interscholastic athletics.

7 (2) An athletic contest or competition, other than interscholastic athletics, sponsored by
8 or associated with a school entity, including cheerleading, club-sponsored sports activities and
9 sports activities sponsored by the school or school-affiliated organizations.

(3) Noncompetitive cheerleading that is sponsored by or associated with a school entity.

(4) Practices, interschool practices and scrimmages for all of the activities listed under paragraphs (1), (2) and (3).

“School entity”, all public schools and any school subject to the Massachusetts Interscholastic Athletic Association rules.

(b)(1) The department of public health shall work with the department of education to develop and post on its publicly accessible Internet websites guidelines and other relevant materials to inform and educate students about the symptoms and warning signs of heart disease, anatomical and electrical abnormalities of the heart, cardiac distress, and sudden cardiac arrest, including the risks associated with continuing to participate in an athletic activity after experiencing the following symptoms: fainting or seizures during exercise, unexplained shortness of breath, chest pains, dizziness, racing heart rate, extreme fatigue, and any other symptom deemed appropriate by the department of public health.

(2) The department shall also provide students the following information annually: a summary of department rules and regulations relative to safety regulations for student's participation in extracurricular athletic activities, including the medical protocol for participation in an extracurricular athletic activity following cardiac symptoms and sudden cardiac arrest; written information related to the recognition of symptoms of heart disease and cardiac abnormalities, as well as sudden cardiac arrest.

(3) A student participating in or desiring to participate in an athletic activity and the student's parent or guardian shall, each school year and prior to participation by the student in an athletic activity, sign and return to the student's school an acknowledgment of receipt and review

of the symptoms and warning sign information sheet developed under this subsection prior to participation.

The forms required under this subsection may be in conjunction with any forms required under M.G.L. Ch 111 Section 222, provided that all requirements under both sections are met.

(4) A school entity may hold an informational meeting prior to the start of each athletic season for all ages of competitors regarding the symptoms and warning signs of heart disease, cardiac abnormalities, and sudden cardiac arrest. In addition to students, parents, guardians, coaches and other school officials, informational meetings may include physicians, pediatric cardiologists and athletic trainers.

(c)(1) In accordance with M.G.L., Chapter 111, Section 222(c), A student who loses consciousness while participating in, or immediately following, an athletic activity, must be removed from participation at that time by the athletic director, coach or athletic trainer.

(2) A student who, as determined by a game official, coach from the student's team, certified athletic trainer, licensed physician or other official designated by the student's school, exhibits signs or symptoms set forth in this section during an athletic activity, may be removed from participation by said game official, coach from the student's team, certified athletic trainer, licensed physician or other official designated by the student's school, if he reasonably believes that said symptoms are cardiac-related. In the absence of one of the persons listed in this subsection, coaches who observe any of the other symptoms set forth in this section, should notify the parent(s) of the student so that the parent(s) can determine what treatment, if any, the student should seek.

(3) A student who is removed from play under this provision shall not be permitted return to participation in an athletic activity until the student is evaluated and cleared for return to participation in writing by an appropriate medical professional.

(d) The sponsors of youth athletic activities are encouraged to follow the guidance stated in this section.

(e) The superintendent of the school district or the director of a school shall maintain complete and accurate records of the district's or school's compliance with the requirements of this section. A school that fails to comply with this section, as determined by the department, shall be subject to penalties as determined by the department.

(f) Nothing in this section shall be construed to waive liability or immunity of a school district or its officers or employees. This section shall not create any liability for a course of legal action against a school district, its officers or employees.

(g) A person who volunteers to assist with an extracurricular athletic activity shall not be liable for civil damages arising out of any act or omission relating to the requirements of this section, unless such person is willfully or wantonly negligent in his act or omission.

(h) The division shall adopt regulations to carry out this section.

SECTION 2. The second paragraph of section 1L of chapter 69 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding, in after the word “resuscitation” the following:— and the use of automatic external defibrillators. Instruction in hands only cardiopulmonary resuscitation and the use of automatic external defibrillators must be the most current national evidence-based Emergency Cardiovascular Care guidelines and

incorporate psychomotor skills development into the instruction as part of a graduation requirement. “Psychomotor skills” is defined as the use of hands-on practicing and skills testing to support cognitive learning. A licensed teacher shall not be required to be a certified trainer of cardiopulmonary resuscitation, to facilitate, provide or oversee such instruction for non-certification. Courses which result in a certification being earned are required to be taught by an authorized CPR/AED instructor.

SECTION 3. Notwithstanding any general or special law to the contrary, the department of elementary and secondary education, based on available appropriations, in Chapter 69, Section 11, will allow as part of the discretionary grant program to provide financial incentives for school districts who require psychomotor skill-based CPR and AED training prior to graduation.

(1) Psychomotor Skill-Based hands only CPR Training shall be based on national Guidelines for CPR and ECC which incorporates the use of hands-on practicing.

(2) These incentives can be in the form of mini-grants or subsidies to support equipment, professional development for psychomotor skills-based CPR training for students to provide hands only CPR training and use of an automated external defibrillator. There shall be a priority for school districts that are considered high needs as defined as where at least 50% of children are eligible to receive free and reduced priced meals or the school participates in the Community Eligibility Provision or Universal Free Meals or high-need schools may also be defined by Title 1 status.